ENERGY REGULATORY COMMISSION
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Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

RESOLUTION NO. 09, Series of 2024

A RESOLUTION REITERATING THE PROVISIONS ON ADMINISTRATIVE OFFENSES AND PENALTIES UNDER REPUBLIC ACT NO. 11234 AND ITS IMPLEMENTING RULES AND REGULATIONS, FOR IMPLEMENTATION BY THE ENERGY REGULATORY COMMISSION

WHEREAS, Republic Act No. 9136, otherwise known as the Electric Power Industry Reform Act of 2001 (EPIRA), created the Energy Regulatory Commission (ERC) as an independent, quasi-judicial regulatory body tasked to discharge functions enumerated therein, as well as other existing laws, rules and regulations;

WHEREAS, in 2019, Republic Act No. 11234, otherwise known as the *"Energy Virtual One-Stop Shop Act"* was enacted;

WHEREAS, Section 17 of R.A. No. 11234 provides for acts which shall be considered as administrative offense, *to wit:*

> *Section 17. Administrative Offenses. - The following acts, when committed by a government official and/or employee, shall be considered an administrative offense:*
>
> *(a) Willful refusal to participate in the EVOSS;*
> *(b) Willful acts which delay the operationalization of the EVOSS;*
> *(c) Failure to comply with the mandated time frames as provided in this Act, or as imposed by the EVOSS Steering Committee; and*
> *(d) Tampering with the EVOSS or any part or component thereof;*

WHEREAS, the processing stages and duration, and timelines within which the System Operator/Transmission Network Provider, and the Market Operator should complete its action for each stage of the application process, have been presented to and adopted by the EVOSS Steering Committee and made part of the EVOSS System;

WHEREAS, the Department of Energy issued Department Circular No. DC2019-05-0007 adopting the Implementing Rules and Regulations of R.A. No. 11234;

WHEREAS, Rules 13 and 15 of the said DOE Department Circular adopted the aforementioned provisions on administrative offenses and penalties;

WHEREAS, Section 19 of R.A. 11234 provides, among others that "In cases of violation by the system operator and market operator of Section 17 (a), (b), and (c), the ERC shall impose a fine of One hundred thousand pesos (P100,000.00) for every day of delay";

WHEREAS, Rule 15 of DOE Department Circular No. DC2019-05-0007 provides, among others that "In cases of violation by the System operator, Transmission Network Provider, and Market Operator of Rule 13 (a), (b), and (c), the ERC shall impose a fine of One hundred thousand pesos (P100,000.00) for every day of delay";

NOW, THEREFORE, BE IT RESOLVED, as it is hereby **RESOLVED**, that the Commission *en banc* reiterates the provisions on administrative offenses and penalties provided under R.A. No 11234 and its IRR, for implementation by the ERC.

Let copies of this Resolution be furnished the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR) and all industry stakeholders, as well as published in the ERC Website and such other online platform available to the Commission.

Adopted on 07 May 2024, Pasig City.

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